Maharashtra Electricity Distribution ... vs M.E.R.C. & Ors on 25 October, 2010

Before the Appellate Tribunal for Electricity
(Appellate Jurisdiction)
Appeal No. 103 of 2007

Dated: 25th October, 2010

Present : Hon'ble Mr. Justice M. Karpaga Vinayagam, Chairperson
Hon'ble Mr. Rakesh Nath, Technical Member

Maharashtra Electricity Distribution Co.Ltd. .... Appellant (s)
Versus
M.E.R.C. & Ors. ... Respondent (s)

Counsel for the Appellant (s) : Mr. Abhishek Mitra
Counsel for the Respondent(s) : Mr. Parag Kabadi
Mr. Abeer Kumar & Ms. Ruchira for R-2
Mr. Buddy A Rnganathan for MERC

ORDER

Now, it is admitted by the learned Counsel for the Appellant as well as the learned Counsel for the State Commission that the connected matter in case No. 1/07 has already been disposed of on 21.2.2008. As pointed out on the last date of hearing that this fact has not been intimated to this Tribunal in time, despite the directions of this Tribunal. However, it is not disputed that this Appeal becomes infructuous in view of the disposal of the case No. 1/07 by the State Commission by its order dated 21.2.2008.

Accordingly, Appeal is disposed of as infructuous.

(Rakesh Nath) (Justice M. Karpaga Vinayagam)
Technical Member Chairperson

PK/JS